

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MICHELLE CHI,

Petitioner

VS.

ARLAN TOKUGAWA,

Respondent

) Case Number: FDI-23-798517

) Hearing Date: August 13, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: CHANGE OF CHOICE OF SCHOOL

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

1) The parties are Petitioner Michelle Chi (Mother) and Respondent Arlan Tokugawa (Father).

They share one minor child: Sora Hana Tokugawa (DOB: 10/15/21).

2) On May 14, 2026, Mother filed a Request for Order in which she seeks the following orders:

- a. An order allowing her to enroll the minor child in a TK program at St. Cecilia School for the 2026-2027 academic year and continuing until the 8th grade;
- b. Allocation of tuition and related expenses in a fair and equitable manner;
- c. Tie-breaking authority regarding educational decision should a dispute arise; and
- d. Any further relief the Court deems necessary and just.

3) On June 29, 2026, the Court conducted a “Readiness” hearing and referred the matter to FCS Mediation to occur on July 29, 2026 and set a return hearing for August 11, 2026.

4) On July 29, 2026, the parties participated in FCS Mediation and were unable to reach an agreement.

1 5) On July 29, 2026, Father filed a Responsive Declaration, which has been read and considered by
2 the Court.

3 6) At the prior 8/11/26 hearing, the Court continued the matter to 8/13/26.

4 **B. Findings and Order**

5 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
6 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
7 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
8 child(ren) is the United States.

9 2) The Court DENIES Mother's request for an order that she be permitted to enroll the minor child
10 at St. Cecilia School for the academic 2026-2027 school year.

11 3) The Court DENIES Mother's request for an allocation of tuition and related expenses, without
12 prejudice.

13 4) The Court DENIES Mother's request for tie-breaking authority regarding educational decisions.

14 5) The Court GRANTS Father's request for an order that the minor child, Sora Hana Tokugawa
15 (10/15/21) be permitted to attend Lafayette Elementary School for the academic 2026-2027
16 academic year and continuing until the 5th grade.

17 6) Mother shall cooperate in executing any and all documentation required to effectuate the Court's
18 orders.

19 7) Any and all prior orders, not in conflict with the orders made herein, shall remain in full force and
20 effect.

21 8) The Court will prepare the Findings and Order After Hearing.
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